

**SUBSTITUTE FOR
HOUSE BILL NO. 5037**

A bill to amend 1927 PA 175, entitled
"The code of criminal procedure,"
by amending section 24 of chapter VII (MCL 767.24), as amended by
2024 PA 268.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

CHAPTER VII

Sec. 24. (1) An indictment for any of the following crimes may
be found and filed at any time:

(a) Murder, conspiracy to commit murder, or solicitation to
commit murder, or criminal sexual conduct in the first degree.

(b) A violation of chapter XXXVIII of the Michigan penal code,
1931 PA 328, MCL 750.200 to 750.212a, that is punishable by
imprisonment for life.



1 (c) A violation of chapter LXVIIA of the Michigan penal code,
2 1931 PA 328, MCL 750.462a to 750.462h, that is punishable by
3 imprisonment for life.

4 (d) A violation of the Michigan anti-terrorism act, chapter
5 LXXXVIII-A of the Michigan penal code, 1931 PA 328, MCL 750.543a to
6 750.543z, that is punishable by imprisonment for life.

7 (2) An indictment for a violation or attempted violation of
8 section 13, 462b, 462c, 462d, or 462e of the Michigan penal code,
9 1931 PA 328, MCL 750.13, 750.462b, 750.462c, 750.462d, and
10 750.462e, may be found and filed within 25 years after the offense
11 is committed. This subsection ~~shall~~**may** be known as "Theresa
12 Flores's Law".

13 (3) An indictment for a violation or attempted violation of
14 section 136, 136a, 145c, 520e, or 520g of the Michigan penal code,
15 1931 PA 328, MCL 750.136, 750.136a, 750.145c, 750.520e, and
16 750.520g, may be found and filed as follows:

17 (a) Except as otherwise provided in subdivision (b), an
18 indictment may be found and filed within 10 years after the offense
19 is committed or by the alleged victim's twenty-first birthday,
20 whichever is later.

21 (b) If evidence of the offense is obtained and that evidence
22 contains DNA that is determined to be from an unidentified
23 individual, an indictment against that individual for the offense
24 may be found and filed at any time after the offense is committed.
25 However, after the individual is identified, the indictment may be
26 found and filed within 10 years after the individual is identified
27 or by the alleged victim's twenty-first birthday, whichever is
28 later.

29 (4) An indictment for a violation of section 520c or 520d of



1 the Michigan penal code, 1931 PA 328, MCL 750.520c and 750.520d,
2 may be found and filed as follows:

3 (a) Except as otherwise provided in subdivision (b), an
4 indictment may be found and filed within 15 years after the offense
5 is committed or by the alleged victim's forty-second birthday,
6 whichever is later.

7 (b) If evidence of the offense is obtained and that evidence
8 contains DNA that is determined to be from an unidentified
9 individual, an indictment against that individual for the offense
10 may be found and filed at any time after the offense is committed.
11 However, after the individual is identified, the indictment may be
12 found and filed within 15 years after the individual is identified
13 or by the alleged victim's forty-second birthday, whichever is
14 later.

15 **(5) An indictment for a violation of section 219g of the**
16 **Michigan penal code, 1931 PA 328, MCL 750.219g, may be found and**
17 **filed as follows:**

18 (a) Except as otherwise provided in subdivision (b), an
19 indictment may be found and filed within 15 years after the
20 offense.

21 (b) If evidence of the offense is obtained and that evidence
22 contains DNA that is determined to be from an unidentified
23 individual, an indictment against that individual for the offense
24 may be found and filed at any time after the offense is committed.
25 However, after the individual is identified, the indictment may be
26 found and filed within 15 years after the individual is identified.

27 **(6) ~~(5)~~As used in subsections (3) and ~~(4)~~to (5):**

28 (a) "DNA" means human deoxyribonucleic acid.

29 (b) "Identified" means the individual's legal name is known



1 and the individual has been determined to be the source of the DNA.

2 **(7)** ~~(6)~~—An indictment for kidnapping, extortion, assault with
3 intent to commit murder, attempted murder, manslaughter, armed
4 robbery, or first-degree home invasion may be found and filed as
5 follows:

6 (a) Except as otherwise provided in subdivision (b), an
7 indictment may be found and filed within 10 years after the offense
8 is committed.

9 (b) If the offense is reported to a police agency within 1
10 year after the offense is committed and the individual who
11 committed the offense is unknown, an indictment for that offense
12 may be found and filed within 10 years after the individual is
13 identified. This subsection ~~shall~~**may** be known as Brandon
14 D'Annunzio's law. As used in this subsection, "identified" means
15 the individual's legal name is known.

16 **(8)** ~~(7)~~—An indictment for identity theft or attempted identity
17 theft may be found and filed as follows:

18 (a) Except as otherwise provided in subdivision (b), an
19 indictment may be found and filed within 6 years after the offense
20 is committed.

21 (b) If evidence of the offense is obtained and the individual
22 who committed the offense has not been identified, an indictment
23 may be found and filed at any time after the offense is committed,
24 but not more than 6 years after the individual is identified.

25 **(9)** ~~(8)~~—As used in subsection ~~(7)~~**:(8)**:

26 (a) "Identified" means the individual's legal name is known.

27 (b) "Identity theft" means 1 or more of the following:

28 (i) Conduct prohibited in section 5 or 7 of the identity theft
29 protection act, 2004 PA 452, MCL 445.65 and 445.67.



(ii) Conduct prohibited under former section 285 of the Michigan penal code, 1931 PA 328.

(10) ~~(9)~~—An indictment for false pretenses involving real property, forgery or uttering and publishing of an instrument affecting an interest in real property, or mortgage fraud may be found and filed within 10 years after the offense was committed or within 10 years after the instrument affecting real property was recorded, whichever occurs later.

(11) ~~(10)~~—All other indictments may be found and filed within 6 years after the offense is committed.

(12) ~~(11)~~—Any period during which the party charged did not usually and publicly reside within this state is not part of the time within which the respective indictments may be found and filed.

(13) ~~(12)~~—The extension or tolling, as applicable, of the limitations period provided in this section applies to any of those violations for which the limitations period has not expired at the time the extension or tolling takes effect.

(14) ~~(13)~~—The changes made to the limitation periods under this section by the 2024 ~~amendatory act that added this subsection~~ **PA 268** apply to offenses committed on or after ~~the effective date of the 2024 amendatory act that added this subsection~~ **April 2, 2025**, and do not apply retroactively to an offense committed before ~~that date.~~ **April 2, 2025.**

Enacting section 1. This amendatory act takes effect 90 days after the date it is enacted into law.

Enacting section 2. This amendatory act does not take effect unless House Bill No. 5036 of the 103rd Legislature is enacted into law.

